Satnam Singh vs State Of Punjab And Another on 23 August, 2013

Author: Ritu Bahri

Bench: Ritu Bahri

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Crl. Misc. No. M-3141 of 2011 (O&M)                    1

          IN THE HIGH COURT OF PUNJAB AND HARYANA
                        AT CHANDIGARH


                              Crl. Misc. No. M-3141 of 2011 (O&M)
                              Date of decision: 23.08.2013


Satnam Singh

                                                        ...Petit

                              Versus


State of Punjab and another

                                                        ...Respo


CORAM : HON'BLE MS JUSTICE RITU BAHRI


Present:    Mr. Vikas Bahl, Advocate,
            for the petitioner.

            Mr. Daljit Singh Virk, AAG, Punjab.

1. To be referred to the Reporters or not?
2. Whether the judgment should be reported to the Digest?

RITU BAHRI, J.
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This petition under Section 482 Cr.P.C., is for quashing of FIR No.113 dated 12.09.2010, under Sections 323, 506 IPC and Section 3 of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 (for brevity 'the SC and ST Act'), registered at Police Station City S.B.S. Nagar, District S.B.S. Nagar (Annexure P-4).

The FIR was registered on the basis of a complaint made by complainant-Deepti Sinha, alleging therein that on the date of incident, Satnam Singh-petitioner came to her house in the absence of

her husband and in the process of having a scuffle, torn her clothes. An attempt was made to kill her. He also gave her filthy abuses by calling "Kutiye Chamariye". It has been alleged that the she belongs to 'Ad-dharmi' caste and her husband Baljit Singh belongs to 'Jatt' caste. It has been further alleged that she has given birth to a child by way of caesarean operation. However, the accused-petitioner gave kick blows to her abdomen, which broke her stitches. In this background, the FIR was registered.

After completion of the investigation, challan under Section 3 (1) (x) of the SC and ST Act and Sections 323 & 506 IPC was presented in the Court.

Learned counsel for the petitioner has submitted that the husband of the complainant has a long standing dispute with the petitioner and both belong to rival political groups. In the year 2009, the petitioner had fought and won the election against Mohinder Singh son of Ajit Singh, as a member from village Churpur for Cooperative Agricultural Service Society, Churpur. The said Mohinder Singh is from the common brotherhood of the complainant. The petitioner had made a complaint to the Senior Superintendent of Police, Nawanshahr, S.B.S. Nagar (Annexure P-2) regarding harassment by the Deputy Superintendent of Police, City Nawanshahr and SHO Police Station City Nawanshahr, as he was being called to the police station. The petitioner had also filed a petition (Annexure P-3) before this Court for seeking directions that he should not be called in the police station repeatedly. A civil suit has also been filed by the petitioner on 30.07.2010 against the complainant as well as her husband for recovery of damages of Rs.25,000/-. Learned counsel for the petitioner further stated that the present FIR has been registered as a counter blast to the above said enmity between the husband of the complainant and the petitioner and as per the allegations in the FIR, it has not been stated that the petitioner knew that the complainant belongs to a Scheduled Caste community and therefore, knowingly he had used filthy language in the name of her caste. Further, there is no medico-legal report (MLR) on the record to show that the petitioner had given kick blows to complainant-Deepti Sinha, which opened up her stitches, given to her upon a caesarean operation. He has further contended that for attracting punishment under Section 3 (1) (x) SC and ST Act, it is necessary that accused does not belong to a scheduled caste community. The second ingredient is that the accused had intentionally insulted a member of the scheduled caste community and had done so within a public view. Hence, no offence under Section 3 (1) (x) of the SC and ST Act is made out. Finally, it was argued that to make out an offence under Section 506 IPC, mere verbal threat is not sufficient. As per the allegations in the FIR, the petitioner had not threatened the complainant with weapon. It was only oral threats, which would not tentamount to an offence under Section 506 IPC.

Learned State counsel, on the other hand, has argued that the petition is liable to be dismissed and the petitioner can raise all these points during the course of the trial.

Heard, counsel for the parties.

Section 3 (1) (x) of the SC and ST Act is reproduced as under:-

> "3. Punishments for offences of atrocities-

> (1) Whoever, not being a member of a Scheduled Caste or a Scheduled Tribe, -
>
> (x) intentionally insults or intimidates with intent to humiliate a member of a Scheduled Caste or a Scheduled Tribe in any place within public view..."

As per the allegations in the FIR, it is nowhere stated that the accused-petitioner knew that the complainant belongs to a scheduled caste community and therefore, he had intentionally used filthy language against her in the name of her caste. Section 3 (1) (x) of the SC and ST Act had come up for consideration before this Court in case Rajinder Kumar Vs. State of Haryana, 2002 (4) RCR (Criminal) 245, wherein, the accused had called the complainant as "Chamar" and there was no allegation that the accused had the knowledge that the complainant belonged to scheduled caste. Therefore, the criminal proceedings under Section 3 (1) (x) of the SC and ST Act were quashed by this Court.

In the present case also, the allegations in the FIR do not spell out that the accused knew that the complainant belonged to a scheduled caste, as such, no offence under Section 3 (1) (x) of the SC and ST Act is made out.

The second essential ingredient to make out an offence under the SC and ST Act is that the objectionable remarks should have been made in public views. In the case in hand, as per the allegations, the accused- petitioner had gone to the house of the complainant when her husband was away. No one else was present in the house. Therefore, the objectionable remarks were made within the boundary wall of the house and not in public view. In Gorkhi Ram and others Vs. State of Haryana and another, 2006 (4) RCR (Crl.) 356, the accused had gone to the house of the complainant, who was scheduled caste and abused the complainant and his family using derogatory remarks against him by calling him by his caste name and the occurrence had taken place within the bounded area of the house of the complainant and not in any place within public view. It was held that no offence under Section 3 of the Act was made out and as such, the complaint under the Act was quashed.

In the present case, the accused had gone to the house of the complainant in the absence of her husband and used derogatory remarks by calling her in the name of her caste. Therefore, the FIR is liable to be quashed on this ground only, as the objectionable remarks were not made in public view.

The second point for consideration is, "whether offence under Section 506 IPC is made out in this case or not." In this regard, Section 506 IPC is reproduced as under:-

> "506. Punishment for criminal intimidation.-- Whoever commits the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;
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> If threat be to cause death or grievous hurt, etc. If threat be to cause death or grievous hurt, etc.-- and if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or 3[

> imprisonment for life], of with imprisonment for a term which may extend to seven years, or to impute unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both."

Section 506 IPC had come up for consideration before a Co- ordinate Bench of this Court in Surinder Suri Vs. State of Haryana and others, 1996 (2) RCR (Criminal) 701, wherein Pawan Kumar had alleged that accused had threatened to kill him, if in future, he published any news item against them. There was an on going litigation between the accused and the complainant. Sister of Pawan Kumar was married to Surinder Suri and they were facing litigation under Section 498-A and a complaint under Section 405, 406, 467, 471 and 120-B IPC. In this background, the FIR was got registered by Pawan Kumar. The said FIR was quashed by exercising the inherent jurisdictioin under Section 482 Cr.P.C., as the allegations made at the time of the incident by Surinder Suri and his brother Ramesh were not with an intent to cause alarm to the complainant.

The gist of the offence under Section 506 IPC is that the threat is intended to have upon the mind of the person threatened. Mere vague allegation will not satisfy the essential ingredients of Section 506 IPC. This Court in Anil Mehra Vs. Ajmer Singh, 1991 (1) RCR (Criminal) 699 and Ram Niwas Kosalia Vs. Narender Kumar Jain, 1991 (2) RCR (Criminal) 518, the criminal proceedings were quashed on the ground that empty threats, without mens rea to cause injury would not amount to an offence under Section 506 IPC.

In the facts of the present case, the allegations in the FIR are simply that the accused-petitioner had entered in the house of the complainant and after abusing her in the name of her caste, had torn her clothes and scuffled with her. He was not armed with any weapon at that time. Therefore, the threat was not so strong enough to affect the mind of the complainant that she would be killed.

Furthermore, no medico-legal report with regard to the injuries alleged to have been suffered by the complainant is available on the record.

Another fact, which requires consideration is that the incident had taken place on 25.04.2010, whereas the FIR was registered on 12.09.2010 i.e. after a gap of five months. The above fact, coupled with the fact that complainant's husband and the petitioner were having long drawn enmity and were involved in criminal complaint as well as civil proceedings, the present FIR, after a gap of five months of the incident, seems to be a counter blast to the proceedings/enmity pending between the parties.

In the light of the above discussion, since the essential ingredients for commission of offence under Section 3 (1) (x) of the SC and ST Act and Sections 323 and 506 IPC are not fulfilled in this case, this Court is of the view that continuation present criminal proceedings against the petitioner would amount to an abuse of the process of Court.

Resultantly, FIR No. 113 dated 12.09.2010, under Sections 323, 506 IPC and Section 3 of the Scheduled Castes & Scheduled Tribes (Prevention of Atrocities) Act, 1989, registered at Police

Station City S.B.S. Nagar, District S.B.S. Nagar (Annexure P-4), on the basis of which challan has been presented under Section 3 (1) (x) of the SC and ST Act and Sections 323 and 506 IPC, is quashed with all consequential proceedings arising therefrom qua the petitioner.

The petition stands allowed accordingly.

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August 23, 2013
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